

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Ben Gilmore	Team: Squad #09	CCRB Case #: 201505480	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Wednesday, 07/01/2015 3:15 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 1/1/2017	Precinct: 113		
Date/Time CV Reported Fri, 07/03/2015 12:14 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Fri, 07/03/2015 12:14 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Michael Ferrari	22463	946984	113 PCT
2. POM Daniel Pelan	05055	952099	113 PCT
3. DTS Thomas Reo	5817	946153	113 PCT

Officer(s)	Allegation	Investigator Recommendation
A . DTS Thomas Reo	Abuse: Det. Thomas Reo stopped § 87(2)(b)	A . Substantiated
B . POM Michael Ferrari	Abuse: PO Michael Ferrari stopped § 87(2)(b)	B . Substantiated
C . POM Daniel Pelan	Abuse: PO Daniel Pelan stopped § 87(2)(b)	C . Substantiated
D . DTS Thomas Reo	Abuse: Det. Thomas Reo entered and searched § 87(2)(b) in Queens.	D . Substantiated
E . DTS Thomas Reo	Abuse: Det. Thomas Reo damaged § 87(2)(b)s property.	E . Substantiated
F . DTS Thomas Reo	Force: Det. Thomas Reo pointed his gun at § 87(2)(b)	F . Substantiated
G . DTS Thomas Reo	Abuse: Det. Thomas Reo searched § 87(2)(b).	G . Substantiated
H . POM Daniel Pelan	Abuse: PO Daniel Pelan searched § 87(2)(b) in Queens.	H . Substantiated
I . POM Michael Ferrari	Abuse: PO Michael Ferrari searched § 87(2)(b) in Queens.	I . Substantiated
J . POM Michael Ferrari	Abuse: PO Michael Ferrari arrested § 87(2)(b)	J . Substantiated
K . DTS Thomas Reo	Abuse: Det. Thomas Reo refused to provide his name and shield number to § 87(2)(b) and § 87(2)(b)	K . Substantiated
L . DTS Thomas Reo	Discourtesy: Det. Thomas Reo spoke discourteously to § 87(2)(b)	L . Substantiated
M . DTS Thomas Reo	Abuse: Det. Thomas Reo threatened to arrest § 87(2)(b)	M . Substantiated
N . POM Daniel Pelan	Abuse: PO Daniel Pelan refused to provide his name and shield number to § 87(2)(b) and § 87(2)(b)	N . Substantiated
O . POM Michael Ferrari	Abuse: PO Michael Ferrari refused to provide his/her name and/or shield number to § 87(2)(b) and § 87(2)(b)	O . Substantiated
P . DTS Thomas Reo	Force: Det. Thomas Reo used physical force against § 87(2)(b)	P . Substantiated

Officer(s)	Allegation	Investigator Recommendation
§ 87(4-b) § 87(2)(g)		

Case Summary

On July 3, 2015, § 87(2)(b) filed this complaint with the CCRB via the online website (Board Review 01). There is video footage of the incident which was provided to the CCRB by § 87(2)(b) on July 17, 2015. The video was obtained from a surveillance camera located at § 87(2)(b) in Queens which is a residence across the street from the incident location (Board Review 02). The video captures the exterior of the incident location, § 87(2)(b) in Queens, and there is no audio included with the video.



Video.mp4

On July 1, 2015, at approximately 3:15 p.m., Det. Thomas Reo, PO Michael Ferrari, and PO Daniel Pelan were on routine patrol, working 113th Precinct anti-crime, in an unmarked dark sedan (Board Review 03). § 87(2)(b) was outside the front of her residence, § 87(2)(b) in Queens. Det. Reo drove the unmarked sedan in front of the location, and he, PO Ferrari, and PO Pelan approached and pursued § 87(2)(b) who moved inside of § 87(2)(b) (**Allegations A-C**). § 87(2)(b) closed the door behind her, and all three officers, led by Det. Reo, entered through the front door inside of § 87(2)(b) (**Allegation D**). Both § 87(2)(b) and § 87(2)(b) alleged that the front door was damaged as a result of the officers' entry (**Allegation E**).

§ 87(2)(b) alleged that Det. Reo entered the residence with his gun drawn and pointed it at her (**Allegation F**). § 87(2)(b) the boyfriend of § 87(2)(b) who was already inside of the residence, entered the room where all three officers had entered. § 87(2)(b) was placed in handcuffs, but he was not under arrest. § 87(2)(b) another resident of § 87(2)(b) and § 87(2)(b)'s sister, entered the room from the basement level. § 87(2)(b) alleged that she asked Det. Reo for his name, but rather than providing it, he told her to "shut up," (**Allegation L**).

§ 87(2)(b) and § 87(2)(b) alleged that Det. Reo searched the inside of § 87(2)(b) (**Allegation G**). § 87(2)(b) alleged that she asked Det. Reo why the officers were present, and Det. Reo responded, "Stop asking questions, and shut the fuck up," (**Allegation M**). § 87(2)(b) and § 87(2)(b) alleged that along with Det. Reo, PO Pelan and PO Ferrari went upstairs during the incident (**Allegations H and I**).

While handcuffed, but not yet under arrest, § 87(2)(b) volunteered that he had marijuana inside of the home, and he led PO Ferrari to a dresser drawer in a bedroom where marijuana was recovered. § 87(2)(b) was then placed under arrest (Board Review 04) (**Allegation J**).

As § 87(2)(b) was led out of the residence, § 87(2)(b) alleged that she asked Det. Reo for his name, but instead of providing it, Det. Reo said, "Shut the fuck up. Shut the fuck up. I'm going to take you to jail if you don't shut up," (**Allegations K-M**). § 87(2)(b) alleged that she and § 87(2)(b) asked each officer for his name and shield number, but their requests were ignored (**Allegations N and O**). § 87(2)(b) and § 87(2)(b) alleged that § 87(2)(b) reached out to § 87(2)(b) to retrieve his keys, and Det. Reo smacked § 87(2)(b) hand (**Allegation P**).

§ 87(2)(g), § 87(4-b)

This case was originally assigned to Ethan De Angelo. It was reassigned to Investigator Ben Gilmore on September 14, 2015.

§ 87(2)(g)

Mediation, Civil and Criminal Histories

- § 87(2)(b) was offered mediation over the phone on July 13, 2015, and she rejected it (Board Review 05).
- A Notice of Claim inquiry was submitted with the New York City Comptroller's Office on October 28, 2015, and it yielded negative results (Board Review 06).

• [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

• [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- This is the first complaint § 87(2)(b) has filed with the CCRB (Board Review 10).
- This is the first complaint in which § 87(2)(b) or § 87(2)(b) is involved. None of these individuals have ever filed a complaint with the CCRB (Board Review 11).
- Det. Thomas Reo has been a member of the NYPD for seven years. Prior to this case, there have been 47 CCRB allegations made against Det. Reo in 18 separate cases.
 - One 'stop' allegation in CCRB #201401876 was substantiated. None of the other CCRB allegations made against Det. Reo were substantiated.
 - The 47 previous CCRB allegations against Det. Reo included:
 - Eight 'stop' allegations.
 - Four 'physical force' allegations.
 - Four 'discourteous word' allegations.
 - Two 'refusal to provide name or shield number' allegations.
 - Two 'gun pointed' allegations.
 - One 'entry or search of residence' allegation.
- PO Michael Ferrari has been a member of the NYPD for seven years, and this is the first CCRB case in which he is a subject officer (Board Review 13).
- PO Daniel Pelan has been a member of the NYPD for three years. § 87(4-b), § 87(2)(g) PO Pelan has no further CCRB history (Board Review 14).

Potential Issues

- Although many attempts were made § 87(2)(b) did not provide a statement to the CCRB (see IAs).

Findings and Recommendations

Allegations not pleaded

- § 87(2)(g) [REDACTED]
- § 87(2)(g) [REDACTED]
- § 87(2)(g) [REDACTED]
- § 87(2)(g) [REDACTED]

Allegation A – Abuse of Authority: Det. Thomas Reo stopped § 87(2)(b)

Allegation B – Abuse of Authority: PO Michael Ferrari stopped § 87(2)(b)

Allegation C – Abuse of Authority: PO Daniel Pelan stopped § 87(2)(b)

On July 1, 2015, at approximately 3:15 p.m. Det. Reo, PO Ferrari, and PO Pelan were assigned to the 113th Precinct Anti-crime, and they were performing routine patrol in an unmarked dark sedan. Det. Reo was operating the vehicle, PO Pelan was the front passenger, and PO Ferrari sat in the rear of the vehicle.

Det. Reo, PO Ferrari, and PO Pelan all reported that they observed two individuals, identified by the investigation as § 87(2)(b) and § 87(2)(b) in the vicinity of § 87(2)(b) in Queens. It is undisputed that the officers were not looking for a particular suspect, scouting a particular location, or responding to a particular report. § 87(2)(b) [§ 86(1)(2)(a)]

None of the officers said that there was anything suspicious about either individual, aside from the fact that each reported that when § 87(2)(b) noticed the unmarked police vehicle, he turned and ran inside of § 87(2)(b) § 87(2)(b) corroborated that she and § 87(2)(b) were together outside of § 87(2)(b) and that § 87(2)(b) entered the location ahead of her, but she said he went inside before her because they were arguing. Although Det. Reo and PO Ferrari mentioned that § 87(2)(b) appeared abandoned, the officers unanimously testified that they did not suspect either § 87(2)(b) or § 87(2)(b) of trespassing or any other crime at this time.

Det. Reo and PO Ferrari both reported that they circled the block two times in order to make additional observations. Both Det. Reo and PO Ferrari reported that § 87(2)(b) remained alone outside of § 87(2)(b) and was not doing anything aside from looking back and forth, and that no additional observations were made. Det. Reo and PO Ferrari both testified that a final pass of § 87(2)(b) was made, this time coming from the opposite direction. It is undisputed that § 87(2)(b) was alone in front of § 87(2)(b) at this time.

Video footage of the incident shows that at the point when the unmarked police vehicle is approaching, § 87(2)(b) is sitting on the front steps of § 87(2)(b). The unmarked vehicle appears to move quickly to § 87(2)(b) before it stops in front of the location. § 87(2)(b) stands up and moves inside of § 87(2)(b) closing the door behind her, as all three officers exit the vehicle and approach § 87(2)(b) on foot.



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Det. Reo reported that no additional observations were made of § 87(2)(b) when he pulled the RMP at approximately 5-10 miles per hour within a few feet of her, stopped and exited his police vehicle (Board Review 19). Det. Reo said that when he exited his vehicle, § 87(2)(b) turned around, made a movement towards her waistband, and ran into § 87(2)(b). This caused Det. Reo to believe § 87(2)(b) had a firearm and he pursued her. Det. Reo said he told § 87(2)(b) to stop but she did not comply.

PO Ferrari stated that from approximately 30 feet away, while § 87(2)(b) was standing in front of § 87(2)(b) halfway hiding behind a tree, and looking in the direction opposite of where the police officers were approaching, he observed § 87(2)(b) to be clenching her left arm tightly against her body as if she were holding something (Board Review 17). From this distance, and for approximately three seconds, PO Ferrari observed a “glimmer” from § 87(2)(b) § 87(2)(b) waistband which caused a bulge to her waistband; PO Ferrari was unable to discern the shape of the object which glimmered and caused the bulge. PO Ferrari testified that throughout the incident, this was the best look he ever got at the object which caused the glimmer and bulge. PO Ferrari reported that at this point a unanimous decision was made to stop § 87(2)(b). PO Ferrari reported that at a semi-slow pace, the police vehicle approached and parked within a few feet of § 87(2)(b).

PO Pelan testified that while driving north-bound towards § 87(2)(b) he observed § 87(2)(b) standing in front of § 87(2)(b) she was not on the front stairs of the location (Board Review 18). PO Pelan said he observed a large and hard-looking bulge, covered by an article of clothing in § 87(2)(b) waistband. The bulge was approximately six inches long and in the shape of the butt of a firearm. PO Pelan did not know if the bulge appeared to be heavy, and he did not recall what § 87(2)(b) was wearing. PO Pelan said § 87(2)(b) saw the officers and ran inside § 87(2)(b). PO Pelan said that when he next saw § 87(2)(b) which was inside of her residence, she was holding a cellphone in her hand and he realized immediately that this was the object which had caused the bulge in her waistband. § 87(2)(b) reported that she was sitting on the steps of § 87(2)(b) holding an electronic tablet (iPad) in her hand, when she observed a vehicle with three men inside-- identified by the investigation as Det. Reo, PO Ferrari and PO Pelan-- who were staring at her as it drove by (Board Review 20). § 87(2)(b) said that she flipped the vehicle off. The vehicle

made a U-turn, accelerated aggressively towards her, and § 87(2)(b) ran inside of § 87(2)(b) and closed the door behind her.

It is undisputed that once the unmarked police vehicle came to a stop in front of § 87(2)(b) Det. Reo, PO Pelan and PO Ferrari pursued § 87(2)(b) on foot.

People v. DeBour, 40 N.Y.2d 210 (1976) states that an officer must harbor reasonable suspicion that the stopped individual engaged, was engaging in, or was about to engage in a crime classified as a felony or misdemeanor under New York State Penal Law (Board Review 15).

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

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§ 87(2)(g)

§ 87(2)(g)

Allegation D – Abuse of Authority: Det. Thomas Reo entered § 87(2)(b) in Queens.

It is undisputed that Det. Reo gained entry into § 87(2)(b) in Queens without consent or a warrant. § 87(2)(b) reported that officers, identified by the investigation to be solely Det. Reo, “broke down her door.” § 87(2)(b) said she heard loud banging and then a particularly loud bang, in the minutes prior to seeing Det. Reo inside of the residence, but she did not see Det. Reo enter the location (Board Review 16).

Video footage shows § 87(2)(b) completely closing the front door behind her as she enters § 87(2)(b) and Det. Reo runs into the closed door with his upper body before kicking the door three times; Det. Reo then enters the residence after the door is forced open by the third kick.



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Det. Reo said he entered after § 87(2)(b) on the “mere suspicion of a firearm” and because § 87(2)(b) had previously run inside the location. Det. Reo testified that he gained entry by pushing against the door which had been completely shut by § 87(2)(b). Det. Reo said that § 87(2)(b) was pushing back against the door, but he eventually overcame her resistance with “probably a push.” Det. Reo was presented the above video footage, and after viewing the video, he remembered kicking the door, but he did not recall how many times he kicked the door.

PO Pelan testified that he did not remember if § 87(2)(b) closed the door behind her, if someone opened the door for the officers to enter, if the officers knocked, or which officer first entered the residence. PO Pelan “did not know” if Det. Reo broke down the door. When shown the above video footage, PO Pelan said he did not remember an officer kicking the front door.

PO Ferrari testified that he did not recall if § 87(2)(b) closed the door behind her when she entered § 87(2)(b). PO Ferrari described Det. Reo as being an arm’s length away from § 87(2)(b) when she entered the location. PO Ferrari said that it appeared as if Det. Reo was pushing back and forth against the door with someone inside, ostensibly § 87(2)(b). PO Ferrari said he did not remember if Det. Reo did anything aside from push against the door to gain entry. PO Ferrari was shown the above video and he said he could not tell from the video that an officer kicks the front door, nor did he independently remember an officer ever kicking the door.

People v. McBride, 14 N.Y.3d 440 (NY Court of Appeals 2010) (Board Review 22) identifies six factors that may create exigent circumstances which would provide legal justification for a warrantless entry: (1) the gravity or violent nature of the offense with which the suspect is to be charged; (2) whether the suspect is reasonably believed to be armed; (3) a clear showing of probable cause to believe that the suspect committed the crime; (4) strong reason to believe that the suspect is in the premises being entered; (5) a likelihood that the suspect will escape if not swiftly apprehended; and (6) the peaceful circumstances of the entry.

§ 87(2)(g)

§ 87(2)(g)
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED].

§ 87(2)(g)
[REDACTED]
[REDACTED]
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[REDACTED]
[REDACTED]

§ 87(2)(g)
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

Allegation E – Abuse of Authority: Det. Thomas Reo damaged § 87(2)(b)'s property.

The video footage (as seen in the analysis of Allegation D) shows Det. Reo running into the closed front door of § 87(2)(b) and then kicking the door a few times before it becomes opened. § 87(2)(b) and § 87(2)(b) alleged that the door was damaged as a result of the officers' entry. § 87(2)(b) said the door was knocked off its hinges, and § 87(2)(b) said the door was almost completely off its hinges. § 87(2)(b) testified that he observed damage to the door when he returned to the location. § 87(2)(b) reported scratches to the door and that it was improperly hanging on its hinges so that the door could not be properly closed.

No officer recalled the door being damaged. Det. Reo testified that § 87(2)(b) was complaining that the door was damaged as the officers left the scene.

PO Ferrari prepared a 'City Involved Accident Report' regarding the damage to the door (Board Review 23). PO Ferrari testified that he believed the report is prepared when someone complains of damage § 87(2)(b) made a complaint at the stationhouse), and not necessarily when there is independent knowledge of the city causing damage. Nevertheless PO Ferrari wrote 'Broken door,' involving NYPD, and 'Force open door for fleeing suspect.' PO Ferrari checked the box indicating that he observed the accident.

§ 87(2)(g)
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

Allegation F – Force: Det. Thomas Reo pointed his gun at § 87(2)(b)

It is undisputed that Det. Reo entered § 87(2)(b) without consent and without a warrant. It is undisputed that when Det. Reo entered, § 87(2)(b) was in the immediate room with her hands up (or immediately placed her hands up upon Det. Reo entering).

was not sure if any other officer did. Det. Reo denied searching the location, and he said he did not see any other officer go in any other room aside from the living room where they had all entered. Det. Reo estimated he was inside of the location for 5-10 minutes.

PO Ferrari acknowledged that he told § 87(2)(b) to show him where the marijuana was, and that PO Ferrari recovered the marijuana from a dresser drawer in an upstairs bedroom. The recovery of marijuana in this location is corroborated by the criminal court complaint report (see Board Review 16). PO Ferrari said that neither PO Pelan nor PO Ferrari searched the residence in any capacity aside from visual scans of where § 87(2)(b) was located. PO Ferrari said the officers were inside of the residence for approximately 10 minutes.

Video footage of the incident shows that Det. Reo, PO Ferrari, and PO Pelan were inside of § 87(2)(b) for approximately 15 minutes.



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People v. Mitchell, 383 NYS2d 246 (1976) (Board Review 25) states that a warrantless search is prohibited except in the case of an emergency. Mitchell lists three requirements of a search prompted by the emergency exception to the warrant requirement: (1) The police must have reasonable grounds to believe that there is an emergency at hand and an immediate need for their assistance for the protection of life or property; (2) The search must not be primarily motivated by intent to arrest and seize evidence; and (3) There must be some reasonable basis to associate the emergency with the area or place to be searched.

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Allegation J – Abuse of Authority: PO Michael Ferrari arrested § 87(2)(b)

It is undisputed that § 87(2)(b) was not suspected of any particular crime when he entered § 87(2)(b). After Det. Reo forcefully entered, § 87(2)(b) entered the room where the officers were standing. It is undisputed that § 87(2)(b) was not suspected of any particular crime at this time. It is undisputed that § 87(2)(b) was unaggressive and compliant during the entirety of his interaction with police.

PO Ferrari acknowledged that he told § 87(2)(b) to stop when he entered the room where the officers were and that § 87(2)(b) complied. PO Ferrari acknowledged frisking § 87(2)(b) finding negative results, and then handcuffing him. PO Ferrari testified that § 87(2)(b) was not under arrest, but he handcuffed § 87(2)(b) “for safety” until PO Ferrari “exactly knew the situation.”

It is undisputed that while § 87(2)(b) was in handcuffs inside his own residence—not yet under arrest—he volunteered that he had marijuana in a dresser drawer in a bedroom inside the residence. It is undisputed that § 87(2)(b) led PO Ferrari to a dresser drawer in an upstairs bedroom where PO Ferrari recovered marijuana, and § 87(2)(b) was placed under arrest. PO Ferrari was the arresting officer.

§ 87(2)(a) 160.50

It is undisputed that the only time § 87(2)(b) was allegedly seen running is when he ran inside his own residence, prior to any communication with the police. § 87(2)(b) was not stopped, told to stop, under arrest or suspected of any particular crime when he was allegedly seen running.

[§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

§ 87(2)(g)

Allegation K – Abuse of Authority: Det. Thomas Reo refused to provide his name and shield number to § 87(2)(b) and § 87(2)(b)

Allegation L – Discourtesy: Det. Thomas Reo spoke discourteously to § 87(2)(b)

Allegation M – Abuse of Authority: Det. Thomas Reo threatened to arrest § 87(2)(b)

Allegation N – Abuse of Authority: PO Daniel Pelan refused to provide his name shield number to § 87(2)(b)

Allegation O – Abuse of Authority: PO Michael Ferrari refused to provide his name and shield number to § 87(2)(b) and § 87(2)(b)

§ 87(2)(b) alleged that when she first entered the living room where the officers had entered she asked Det. Reo for his name, but rather than providing it, he told her to, “shut up.”

§ 87(2)(b) alleged that when § 87(2)(b) was being led out of the residence, she again asked Det. Reo for his name, and he said, “Shut the fuck up. Shut the fuck up. I’m going to take you to jail if you don’t shut up.”

§ 87(2)(b) testified that when § 87(2)(b) was being led out of the residence, both she and § 87(2)(b) asked each officer for their name and shield number, but their requests were ignored.

Det. Reo denied cursing at any point during the incident. Det. Reo acknowledged that § 87(2)(b) asked him for his name and shield number, and that he provided it to § 87(2)(b) because § 87(2)(b) was yelling. Aside from § 87(2)(b) being loud, there was no other reason Det. Reo did not provide his name to § 87(2)(b). Det. Reo assumed § 87(2)(b) heard him tell § 87(2)(b) his name and shield number because she was standing in close proximity. Det. Reo said he did not remember telling § 87(2)(b) that she could be arrested.

PO Pelan denied hearing anyone ask for any officer’s name or shield number. PO Pelan testified that he did not hear any officer use any profanity during the incident.

PO Ferrari denied refusing to provide his name or shield number to anyone, nor did he observe Det. Reo or PO Pelan refuse to provide their names or shield numbers to anyone. PO Ferrari denied hearing any officer use profanity during the incident.

Patrol Guide Procedure 203-09 requires officers to courteously and clearly state their rank, name, shield number and command, or otherwise provide them, to anyone who requests (Board Review 26).

New York Police Department v. Howard (2003) states that police should refrain from using discourteous language, but cites two circumstances in which discourteous language is permissible: (1) In order to effectively deal with a belligerent suspect and (2) During a stressful street encounter in order to obtain needed cooperation (Board Review 27).

Det. Reo acknowledged that § 87(2)(b) asked for his name, and he said that in response, he told § 87(2)(b) his name. Neither § 87(2)(b) nor § 87(2)(b) corroborated this account. Although PO Pelan said he did not hear Det. Reo use profanity during the incident, he also reported he did not hear any civilian ask an officer for their name or shield number. § 87(2)(g)

§ 87(2)(g)

Allegation P – Force: Det. Thomas Reo used physical force against § 87(2)(b)

As § 87(2)(b) was being escorted out of § 87(2)(b) both § 87(2)(b) and § 87(2)(b) alleged that Det. Reo slapped § 87(2)(b) hand when she reached for keys which § 87(2)(b) held.

Det. Reo said that § 87(2)(b) twice reached out to retrieve property from § 87(2)(b). Det. Reo testified that he told § 87(2)(b) to stop, but he did not do anything else to prevent § 87(2)(b) from retrieving § 87(2)(b)’s property. Both PO Pelan and PO Ferrari said they did not recall if Det. Reo slapped § 87(2)(b) hand.

The property voucher related to § 87(2)(b)'s arrest indicates that keys were vouchered for safekeeping. It is undisputed that § 87(2)(b) was compliant during the entirety of the incident. PO Ferrari testified that he had already frisked § 87(2)(b) which yielded negative results.

Patrol Guide Procedure 203-11 requires that officers use the minimum amount of force necessary (Board Review 28).

§ 87(2)(g)
[Redacted text block]

§ 87(4-b), § 87(2)(g)
[Redacted text block]

Squad: 9

Investigator: _____
Signature Print Date

Squad Leader: _____
Title/Signature Print Date

Attorney: _____
Title/Signature Print Date